

**Court No. - 48**

**Case :-** WRIT - C No. - 10946 of 2021

**Petitioner :-** Ram Badan Ram

**Respondent :-** State Of U P And Another

**Counsel for Petitioner :-** Amit Prakash Upadhyay, Gyanendra  
Prakash Srivastava

**Counsel for Respondent :-** C.S.C., Chetan Chatterjee

**Hon'ble Munishwar Nath Bhandari, J.**

**Hon'ble Ajai Tyagi, J.**

Let this petition be listed again on 30th June, 2021 as fresh.

**Order Date :-** 21.6.2021

VMA

**Court No. - 39**

**Case :-** WRIT - C No. - 10946 of 2021

**Petitioner :-** Ram Badan Ram

**Respondent :-** State Of U P And Another

**Counsel for Petitioner :-** Amit Prakash Upadhyay, Gyanendra Prakash Srivastava

**Counsel for Respondent :-** C.S.C., Chetan Chatterjee

**Hon'ble Mrs. Sunita Agarwal, J.**

**Hon'ble Mrs. Sadhna Rani (Thakur), J.**

No one has put in appearance on behalf of the petitioner.

Sri Chetan Chatterjee, learned counsel for the respondent no.2 and learned Standing Counsel for the State- respondent are present.

List this matter as fresh after three weeks.

**Order Date :-** 30.6.2021

Radhika

**Court No. - 3**

**Case :-** WRIT - C No. - 10946 of 2021

**Petitioner :-** Ram Badan Ram

**Respondent :-** State Of U P And Another

**Counsel for Petitioner :-** Amit Prakash Upadhyay, Gyanendra Prakash Srivastava

**Counsel for Respondent :-** C.S.C., Chetan Chatterjee

**Hon'ble Naheed Ara Moonis, J.**

**Hon'ble Saumitra Dayal Singh, J.**

List revised. None is present on behalf of the petitioner. However, learned Standing Counsel and Shri Chetan Chatterjee, learned counsel for the Corporation are present.

This is a third listing of the case as fresh case. None has appeared on behalf of the petitioner, on earlier listing as well.

The present writ petition has been filed seeking following reliefs:-

*"(1) Issue a writ, order or direction in the nature of certiorari quashing the impugned electricity bill cum disconnection notice dated 19.02.2021 issued by respondent no. 2.*

*(2) Issue a writ, order or direction in the nature of mandamus directing the respondent no. 2 to receive the dues of the electricity bill in easy and equal installments, without imposing any interest and collection charge over the petitioner."*

Insofar as the prayer no. 1 is concerned, learned counsel for the corporation submits that the petitioner has defaulted in payment of electricity dues and the petitioner has also not complied with the terms of One Time Settlement scheme after depositing Rs. 62,731/-. Accordingly, that application has not been processed.

Insofar as the prayer no. 2 is concerned, we find that the

power to receive the outstanding dues in installments is with the respondent no. 2 i.e. Purvanchal Vidyut Vitran Nigam.

In view of the above, the present writ petition is ***disposed of*** with a direction that, in case, the petitioner files an application before Executive Engineer-II, Azamgarh of the Purvanchal Vidyut Vitran Nigam within a period of two weeks' from today in terms of Clause 6.14 of the U.P. Electricity Supply Code, 2005, the said application may be decided by the respondent-corporation on its own merits, strictly in accordance with law within a reasonable period of one month from the date of such application being filed. The claim for reconnection, etc. may be dealt with, accordingly.

**Order Date :-** 30.7.2021  
Saurabh